

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY
Cotabato City

Fourth Regular Session

BTA PARLIAMENT
BTA Parliament Bill No. 510

Bangsamoro Autonomous Region in Muslim Mindanao
Parliament

BILLS AND INDEX DIVISION

RECEIVED

Name: ADILAMP DAPATUAN Signature: [Signature]
Date: 09/14/20 Time: 8:15 AM

Introduced by

MP ENGR. BANTAN ADIL-AMPATUAN, MNSA

Co-Authored

MP ATTY. LAISA MASUHUD-ALAMIA, MNSA; MP AMILBAHAR S. MAWALLIL, MPSA; MP ATTY. SUHARTO MP. AMBOLODITO, MNSA; MP ATTY. RASOL Y. MITMUG, JR.; MP ENGR. DON ARBISON A. LOONG, MPSA; MP RASUL ENDEREZ ISMAEL

AN ACT

REQUIRING MUSLIM RESTAURANTS AND FOOD ESTABLISHMENTS WITHIN THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO (BARMM) TO SECURE HALAL CERTIFICATION AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF

Explanatory Note

As a Muslim region, it is a policy of the Bangsamoro Government to regulate the operations and maintenance of business establishments in the Bangsamoro Autonomous Region.

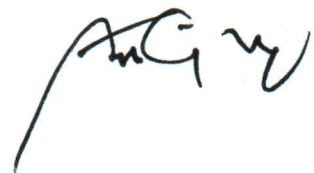
Among these business establishments is the operation and maintenance of Muslim restaurants and other food establishments within the jurisdiction of the Bangsamoro Autonomous Region in Muslim Mindanao.

Halal foods are foods that Muslims are allowed to eat, drink, and consume. Shariah or Islamic Law specifies what foods are allowed and how these foods must be prepared.

Halal certification gives assurance to the consumers that the food products are produced according to the Shariah Law, and that they are also clean, hygienic, environmentally-friendly, and respects animal welfare.¹

Halal food is now a growing business industry in the BARMM economy, particularly in the urban centers of the autonomous region. To protect the health and well-being of BARMM constituents, it is the intention of this proposed bill to require Muslim restaurants and other food establishments within BARMM to secure Halal certification from appropriate agency of the government and penalties should be provided for the absence and/or violation thereof.

In view of the foregoing, the passage of this legislative measure is earnestly sought.

A handwritten signature in black ink, appearing to be 'M. G. Uy', is located on the right side of the page.

¹ Rahman, R. (April 2021). *Halal principles as one of the food safety measurements*. Food and Fertilizer Technology Center for the Asian and Pacific Region. Retrieved from <https://ap.ffc.org.tw/article/2731>

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY 2
Cotabato City

First Regular Session

BTA PARLIAMENT
BTA Parliament Bill No. 10

Bangsamoro Autonomous Region in Muslim Mindanao
Parliament
BILLS AND INDEX DIVISION
RECEIVED
Name: ADELAIH DIMPATUAN Signature: [Signature]
Date: 09/10/22 Time: 2:45 PM

Introduced by

MP ENGR. BANTAN ADIL-AMPATUAN, MNSA

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AN ACT
REQUIRING MUSLIM RESTAURANTS AND FOOD ESTABLISHMENTS
WITHIN THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM
MINDANAO (BARMM) TO SECURE HALAL CERTIFICATION AND
PROVIDING PENALTIES FOR VIOLATIONS THEREOF²

Be it enacted by the Bangsamoro Transition Authority in session assembled:

Section 1. Short Title. – This Act shall be known as “*Halal Food Certification Act of 2022.*”

Section 2. Declaration of Policy. – It is the declared policy of Bangsamoro Government to promote, protect, and ensure the general welfare of the Bangsamoro people and other inhabitants in the Bangsamoro Autonomous Region.

Towards this end, the Bangsamoro Government shall require *halal* food certification from every Muslim restaurant and food establishment within the BARMM.

² This is from the entry of Ibrahim D. Pendatu, Santanina D. Datu-Imam, and Farhaida H. Datu-Imam during the bill and resolution drafting contest of the Office of MP Ampatuan and MP Mawallil, as part of the initiative said offices to engage the youth and communities to come up with legislative measures. Revisions and improvements were done by the Office of MP Ampatuan.

The Bangsamoro Government shall, likewise, adopt measures to achieve the following objectives:

- a) Promotion of *halal* food and related products in the Bangsamoro Autonomous Region;
- b) Protection of consumers against hazards to health, safety, and religion;
- c) Protection of Muslim consumers against deceptive, unfair, and unconscionable sales acts and practices;
- d) Prohibition against misrepresentation and false claims in the preparation and sale of *halal* food products;
- e) Provision of information and education to facilitate sound choice and ensuring proper exercise of rights by *halal* food consumers; and
- f) Provision of adequate remedies and means of redress for aggrieved *halal* consumers.

Section 3. Definition of Terms. – As used in this Act, the following terms shall have the following definition:

- a) ***Accrediting body*** refers to one of the *Halal*-certification bodies that are recognized by the Department of Trade and Industry's Philippine Accreditation Bureau (DTI-PAB), to wit:
 - 1. Islamic Da'wah Council of the Philippines,
 - 2. Halal Development Institute of the Philippines,
 - 3. Mindanao Halal Authority,
 - 4. Muslim Mindanao Halal Certification Board,
 - 5. Halal International Chamber of Commerce and Industries in the Philippines,
 - 6. Islamic Advocate on Halal and Development,
 - 7. Philippine Ulama Congress Organization,
 - 8. Alliance for Halal Integrity in the Philippines, and
 - 9. Prime Certification and Inspection Asia Pacific;
- b) ***Bangsamoro Region*** refers to the composition provided in Section 2 of Article III of R.A. 11054, otherwise known as the Bangsamoro Organic Law, and to those areas that will join the Bangsamoro Region in the future;
- c) ***Certification*** refers to third party attestation of conformance to the standards and guidelines related to products, processes, or systems as *halal* or *halal*-compliant;

- d) **Food establishment** refers to a public place where food and drinks are served for a fee, with net capitalization of at least one million pesos (P1,000,000.00);
- e) **Failed certification** refers to a certificate given to an establishment that failed to confirm with the standard set to be qualified as *halal* or *halal-compliant*;
- f) **Passed certification** refers to a certificate given to an establishment who confirm with the *halal* standard; and
- g) **Haram** translates to “unlawful” or “forbidden” and when used in the context of food or food products or other consumer products, it refers to those disallowed for human consumption by the *Shariah*;
- h) **Shariah** refers to the Islamic law, which is based on the Qur’an (Holy Book of Islam), Hadith (Traditions of the Holy Prophet Mohammad), Ijma (Consensus of Muslim scholars), and Qiyas (Legal Deduction or Analogy).

Section 4. Persons Covered. – Any sole proprietor, partnership, cooperative, association, corporation or any juridical entity, either by franchise or not, engaged in Muslim restaurant or eatery business within the Bangsamoro Region.

Section 5. Securing Halal Certification. – Any person covered by this Act shall secure a *halal* certification from any *Halal* accrediting body before the end of January of every current year.

The accrediting body having jurisdiction to provide inspection and certification services shall evaluate the application received in accordance with the prescribed procedure within fifteen (15) days upon receipt. A passed or a failed certification will be issued to the applicant and shall be valid for one (1) year.

Further, this certification shall be posted in an area visible to customers and consumers and shall be indicated in the menu of the establishment.

Section 6. Application Fee. – Upon application, a fee shall be collected from any person covered by this Act in the amount not exceeding five hundred pesos (P500.00).

This collection shall be monitored by the Ministry of Trade Investments and Tourism – Bangsamoro Autonomous Region in Muslim Mindanao (MITT-BARMM).

Section 7. General Guidelines. – For the purpose of this Act, the following guidelines in the preparation, handling, storage, and verification of *halal* products shall serve as basic requirements for certification are hereby established:

- a) The food or product or their ingredients must not contain any component of animals that are prohibited under *Shariah* or animals that are not slaughtered according to *Shariah*;
- b) The food or product must not contain ingredients that are considered haram by *Shariah*;
- c) The food or product must not be prepared, processed, or manufactured using equipment or facilities that have been contaminated with *haram* (forbidden) ingredients; and
- d) During its preparation, processing, storage, or transportation, the food or product must be fully separated from and must not come in contact with any other food or product that has been decreed *haram* by *Shariah* or does not meet the requirements stated in items (a), (b), or (c) above.

These guidelines shall be observed together with the existing Philippine Standards for *halal* certification, without prejudice to accredited bodies adopting stricter and more comprehensive guidelines or requirements for the issuance of certifications to applicants.

Section 8. *Prohibited Acts.* – It shall be unlawful for any sole proprietor, partnership, or corporation, either by franchise or not, engaged in the operation of a Muslim restaurant or any food business, to:

- a) Knowingly use, indicate, or post a *halal* passed certification in any place visible to the public or to do such acts as to make it appear or convey that the food establishment is *halal*-compliant or that it is serving *halal*-compliant food, without the required certification from any *halal* accredited body; and
- b) Falsely represent any food sold, prepared, served, or offered for sale to be a *halal* without the proper *halal* certification.

Section 9. *Administration.* – This Act shall be administered by the MTTT-BARMM as part of the promotion of *halal* awareness in the entire Bangsamoro Region.

Section 10. *Penalties.* – Any violation of Section 7 or 8 of this Act committed by any establishment shall be a ground for the cancellation of its *halal* certification. The suspension of operations of the violator(s) for a period not exceeding six (6) months or cancellation of their licenses or permits to conduct business, may also be recommended by the appropriate government agency, depending on the gravity of the infractions;

Violation of Section 7 hereof shall also constitute the crime of false description or representation punishable under the provisions of paragraph 2, Article 189 of the Revised Penal Code of the Philippines.

A violation of Section 8 hereof shall constitute the crime of falsification by a private individual and use of falsified documents, punishable under Article 172 of the Revised Penal Code of the Philippines with a punishment of *prision coreccional*

in its medium and maximum periods and a fine of not more than one million pesos (P1,000,000.00).

The criminal penalty shall be imposed upon the owner of the establishment and other responsible persons. In the case of corporation, partnership, association, cooperative or other juridical entities, the penalty provided for by law shall be imposed upon the directors, officers, employees or other persons therein responsible for the offense.

Section 11. Sanctions. Any covered person or entity that failed to secure a certification, whether a passed or a failed, shall pay a fine of five hundred pesos (P500.00) per day, until this Act has been complied with.

Section 12. Transitory Provision. - Those covered persons having an existing certification from accredited bodies as *halal*-compliant before the effectivity of this Act may continue to use such certification until December of its effectivity. Thereafter, those concerned shall be obliged to secure a certification on or before the last day of January of the current year.

Section 13. Appropriations. - Initially, the funds needed to carry out the provisions of this Act shall be at least five percent (5%) of the funds allotted to the MITT- BARMM which are intended for the said purpose.

Section 14. Repealing Clause. - All regional laws, executive orders, rules or regulations, or any part thereof, which are inconsistent with this Act, are hereby repealed, amended, or modified accordingly.

Section 15. Separability Clause. - If any provision or part of this Act is held invalid or unconstitutional by a competent court, the remainder of this Act or the provisions not otherwise affected shall remain valid and subsisting.

Section 16. Effectivity. This Act shall take effect after fifteen (15) days following the completion of its publication in a newspaper of general circulation in the Bangsamoro Autonomous Region in Muslim Mindanao.

Adopted,



MP ENGR. BAIN TAN ADIL-AMPATUAN, MNSA